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OPR: WVOT Cybersecurity

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

Publications are available online at
https://sites.google.com/wv.gov/othub/policy-governance/ot-policies

Questions and change recommendations related to this publication shall be directed to this publication's Office of Primary Responsibility (OPR). This policy shall be reviewed annually to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

SUMMARY OF VERSIONS AND CHANGES

Version	Date	Revision Description
1	07/01/2015	Added Log History, Policy-Specific Definitions, Related Materials/Documents
2	09/01/2016	Reviewed - No Changes
3	10/20/2017	Reviewed - No Changes
4	12/28/2023	Updated website information
5	03/26/2026	Reformatted and updated paragraphs 3.2 and 3.11.1

1. PURPOSE

1.1. This policy defines standards, procedures, and restrictions for Executive Branch employees who use devices to connect to a WVOT-supported network, in order to store, back-up, relocate, or otherwise access enterprise data in a safe, secure manner.

2. SCOPE

2.1. This policy applies to all departments (including agencies, boards, authorities, and commissions) within the Executive Branch of WV State Government, excluding constitutional officers, the WV Board of Education, the WV Department of Education, and the county boards of education that have access to or use State-provided resources.

2.2. Where there are policies in place which provide less restrictions or security than this policy, those policies will be superseded by this policy. In instances where existing state and federal laws, regulations, and policies are more restrictive than this policy, more restrictive provisions will prevail.

3. POLICY

3.1. The security safeguards may vary by device type, but in all cases must comply with the requirements set forth in this policy. This document is not all-inclusive and management has the authority and discretion to appropriately address any unacceptable behavior and/or practice not specifically mentioned herein.

3.2. For the purposes of this policy, “Digital Media” includes any technology or service that contains state owned media (disk, cloud service, etc.)

3.3. Employees are prohibited from using personally owned media on state-owned devices or to store State data. This includes both personal usb devices, sd cards, and personal cloud storage (Dropbox, etc.)

3.4. The WVOT reserves the right to disable the ability to connect to removable media, USB devices, and personal cloud storage.

3.5. Agencies may prohibit flash drive use at any time in order to protect data. This prohibition should be implemented through policy, training, and/or use of technical controls (e.g. port blocking control).

3.6. All media must be encrypted using NIST FIPS 140 approved technology.

3.7. Employees are prohibited from using removable media, USB devices, and personal cloud storage that does not have adequate protection mechanisms to store or transmit sensitive data (e.g., Protected Health Information,Sensitive Personally Identifiable Information, Federal Tax Information (FTI)).

3.8. Employees must not uninstall or deactivate any security controls loaded onto the media device by the WVOT, or its designee.

3.9. Employees must immediately report all security incidents or suspected incidents of unauthorized data access, data loss, and/or disclosure to the Privacy Officer portal: https://wv.accessgov.com/technology/Forms/Page/incident-reporting/incident-reporting/1

3.10. The WVOT will establish audit trails or logs in all situations it deems is warranted. The resulting records will allow tracking of any data movement, and the resulting reports may be used for investigation of possible breaches and/or misuse. The WVOT has the right to monitor all employee access and/or connection to the State network in order to identify and analyze unusual usage patterns or other activity.

3.11. Employees may not use authorized removable media devices for long term data storage.

3.11.1. Under normal circumstances users must store all data on WVOT managed State servers or storage (e.g. state approved file storage (Ex. Google Drive). If an agency elects to use a non-WVOT managed removable media storage option, they accept full responsibility for managing, securing, and protecting the data while still maintaining WVOT policies regarding approval of devices used, encryption and physical access controls. Data stored on any removable media is outside of the control of the WVOT. If in doubt, contact the WVOT Service Desk.

3.12. When content from any State information system is output to some form of media, that content and media must be handled and stored in a manner appropriate for the data.

3.12.1. Removable media must be physically protected against loss, damage, abuse, or misuse when used, stored, and in transit.

3.13. When confidential information is physically transported it shall be done so in a secure manner and only by personnel specifically authorized to do so.

3.14. Where information is transferred to media, that media shall be stored securely within a controlled area, and access to that media shall be physically restricted to authorized personnel. Once information system media is no longer needed to store or transport system information it must be completely sanitized before reuse, or destroyed before retirement.

3.15. All state agencies must complete a Data Protection Addendum whenever they are going to host data outside of the state environment. A DPA template is available on the WVOT Policies and Procedures webpage.

3.16. Employees will contact an immediate supervisor and/or the Chief Information Security Officer (CISO) if there is doubt concerning authorization to access any State-provided IT resource, or if questions arise regarding acceptable or unacceptable uses. If criminal activity is suspected or detected, reporting must be made to the CISO without delay.

4. POLICY SPECIFIC DEFINITIONS

4.1. Chief Information Officer (CIO) - the person designated by the governor to lead the WV Office of Technology and oversee information technology practices and initiatives for the Executive Brand of WV State government, excluding the constitutional officers.

4.2. Chief Information Security Officer (CISO) - Person designated by the CIO to oversee information security practices and initiatives for the Executive Branch of WV State government, excluding the constitutional officers.

4.3. Digital Media – Digital media are any media that are encoded in a machine-readable format. Digital media can be created, viewed, distributed, modified and preserved on digital electronics devices.

4.4. Federal Tax Information (FTI) -- FTI may consist of returns or return information and may contain personally identifiable information (PII). FTI is any return or return information received from the IRS or secondary source, such as SSA, Federal Office of Child Support Enforcement or Bureau of Fiscal Service. FTI includes any information created by the recipient that is derived from return or return information.

4.5. Legally Protected Data / Information – Personally identifiable information (See definition below) of any kind, such as personal, financial, academic, or health related data, which is protected by privacy and/or security laws. Protected Health Information (See definition below - e.g. medical records, diagnosis information, etc.) Laws are divided into categories, federal and state, which govern the handling of certain types of sensitive information that must be protected by those authorized to use it. PHI, PII, FTI are examples of highly sensitive and regulated data.

4.6. Office of Primary Responsibility (OPR) - The primary section within WVOT that takes the lead on a specific policy or procedure. Usually the WVOT service provider/owner that the policy is related to or governs.

4.7. Personally Identifiable Information (PII) – protected and non-protected information that can be used to identify, locate, or contact an individual.

4.8. Protected Health Information (PHI) – Information, including demographic data, that relates to: an individual's past, present or future physical or mental health or condition; the provision of health care to the individual; or the past, present, or future payment for the provision of health care to the individual, and that identifies the individual or for which there is a reasonable basis to believe can be used to identify the individual. PHI includes many common identifiers (e.g., name, address, birth date, Social Security Number).

4.9. Security Incident – An event characterized by unexpected and unwanted system use or behavior, breach, or unintended alteration of data.

4.10. West Virginia Office of Technology (WVOT) - The division of the Department of Administration established by WV Code § 5A-6-4a, et. seq., which is led by the State's CIO and designated to acquire, operate, and maintain the State's technology infrastructure. The WVOT is responsible for evaluating equipment and services, and reviewing information technology contracts.

5. RELEVANT MATERIALS AND DOCUMENTS

5.1. This policy is consistent with the following federal and state authorities:

5.1.1. 45 Code of Federal Regulations (CFR) §§ 164.308-316

5.1.2. Freedom of Information Act

5.1.3. Gramm-Leach Bliley Act (GLBA)

5.1.4. Health Insurance Portability and Accountability Privacy Rule

5.1.5. NIST SP 800-14 and NIST SP 800-53

5.1.6. State Health Privacy Laws

5.1.7. WV Code § 5A-6-4a

5.1.8. WV Executive Order No. 7-03

5.1.9. WVOT Policies Issued by the Chief Information Officer (CIO), https://sites.google.com/wv.gov/othub/policy-governance/ot-policies